

CONTRACTS MODULE · LESSON: SECTION H SPECIAL REQUIREMENTS

Section H Excerpt: Key Personnel & Deployment Requirements

Example Task Order: Distributed Network Support Operations (DNSO)

Section H is where a Task Order gets specific about the things the FAR clauses in Section I never cover: who your Key Personnel are, what clearance they need, what happens if you swap them out, and what your people have to do before they set foot overseas. This excerpt is drawn from real Section H language, sanitized.

Key Personnel

The following are the minimum personnel designated as 'Key.' The Government does not intend to dictate the composition of the ideal team to perform this Task Order.

1. Task Order Program Manager (TOPM)
2. Deployment Coordinator

TOPM: Required Qualifications

- Authority to commit the prime contractor's organization.
- A Top Secret (TS) clearance with access to Sensitive Compartmented Information (SCI) based on a Single Source Background Investigation (SSBI).
- Current PMP, PgMP, or DAWIA Level III Program Management certification.

TOPM: Desired Qualifications

- Experience managing a contract/task order involving enterprise IT and network operations.
- Experience managing performance-based projects with multiple OCONUS performance locations.
- Working knowledge of Status of Forces Agreement (SOFA) requirements within the assigned AORs.

Key Personnel Substitution

The contractor shall not replace any Key Personnel without written concurrence of the Contracting Officer. Notification of a proposed substitution is required no later than 10 calendar days in advance, and must include justification (resume(s) and labor category of the proposed substitute) sufficient to permit evaluation of the impact on Task Order performance. Substitute Key Personnel qualifications shall be equal to, or greater than, those of the personnel being substituted.

Personnel Deployment Requirements

The contractor shall ensure that deploying personnel have met and comply with all appropriate clearance, medical, training, travel, and coordination requirements necessary to accompany military forces and deploy to the assigned AOR.

Contractor personnel preparing to deploy must be cognizant they are representing the supported nation to foreign nationals in foreign countries. While deployed, personnel shall conduct themselves professionally and safely, respecting local customs and laws. Personnel who fail to comply shall promptly be removed and replaced at the contractor's expense.

The contractor is not authorized to discuss mission details with news media unless coordinated through Public Affairs. Contractors must keep Operational Security (OPSEC) in mind when posting details of their activities on personal social media accounts.

Security Clearance Requirements

All personnel on this effort must be citizens of the supporting nation with a current Top Secret clearance eligible for Sensitive Compartmented Information (SCI) based on a Single Source Background Investigation (SSBI), or the ability to attain that clearance based on an existing and current SSBI. Personnel must also be able to deploy to locations within the assigned AOR. The Government may waive these requirements based on changes to the tasking required for a particular position.

OCONUS Work Profile

DUTY LOCATION	STANDARD HOURS	NOTES
CONUS	40 hrs/week, 8am–5pm local	May exceed 40 hrs for exercises, holidays, weekends, or 24x7 operations.
OCONUS	40 hrs/week or greater when required	Duty hours match host organization unless TDL specifies otherwise. May require 24x7 support.
On-Call / Extended	As designated in writing	Considered emergency hours; parameters set by the Government representative in writing.

FROM LUCAS

This is the section most new contractor PMs skip until it bites them. Key Personnel clauses aren't bureaucratic filler, no matter how much they read like it. If your TOPM quits and you don't notify the CO within the window specified here, you're technically in breach, and the Government can invoke default clauses. Read your Section H the day you're assigned to a program, not the day you have a personnel emergency.